Fiscal Impact Statement

Legislative Council Staff

Nonpartisan Services for Colorado's Legislature

AMENDMENT 86: REQUIREMENTS FOR OFF-CYCLE CONGRESSIONAL REDISTRICTING

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Summary Information

Overview. The measure amends the constitution to require the Colorado Independent Congressional Redistricting Commission to review and approve off-cycle changes to congressional maps.

Types of impacts. The measure is projected to affect the following areas:

- State Expenditures

Disclaimer. This fiscal impact statement has been prepared for a statewide ballot measure appearing at the 2026 statewide election. Any appropriations required to implement this measure will be addressed through the annual or supplemental budget process if this measure is approved by voters. For more information about this measure, please see the ballot information booklet.

Table 1
State Fiscal Impacts

Type of Impact	Non-Impacted Years	Impacted Years
State Revenue	$0	$0
State Expenditures (Cash Funds)	$0	$367,603
Transferred Funds	$0	$0
Change in TABOR Refunds	$0	$0
Change in State FTE	0.0 FTE	1.0 FTE

Impacted years refers to any year when off-cycle congressional redistricting occurs.

Amendment 86

Summary of Measure

Under current law, the Colorado Independent Congressional Redistricting Commission (commission) meets every ten years, after the decennial census, to create new district maps to divide the state into congressional districts. Any changes to the district maps after approval by the commission, and before the next decennial census, is considered off-cycle.

The measure requires that any off-cycle changes to congressional districts, should they occur, be approved by the commission and adopted by the Colorado Supreme Court. Before approving any changes, the commission must hold at least three public hearings. The measure also prohibits off-cycle changes to congressional districts that intentionally favor a political party or unnecessarily divide communities of interest.

State Expenditures

If approved by voters, the measure increases state expenditures by about $370,000 in any fiscal year where the commission must convene and review changes to congressional maps outside of its usual redistricting schedule. These costs will be incurred in the Legislative Department as shown in Table 2 and described in the sections below. Costs are paid from the Legislative Department Cash Fund. The measure will also increase workload for the Judicial Department.

Table 2
State Expenditures
Legislative Department

Cost Component	Non-Impacted Years	Impacted Years
Personal Services	$0	$75,756
Operating Expenses	$0	$1,280
Capital Outlay Costs	$0	$7,000
Commissioner Costs	$0	$11,664
Legal Services	$0	$250,000
Employee Insurance and Supplemental PERA	$0	$21,903
Total Costs	**$0**	**$367,603**
Total FTE	**0.0 FTE**	**1.0 FTE**

Staff

The Legislative Department requires 0.8 FTE Research Analyst and 0.2 FTE Staff Attorney to provide staff support to the commission and facilitate the selection of commissioners to fill any vacancies since the commission last convened. Staff support includes administrative, legal, geographic information services, and policy research and analysis.

Commissioner Costs

Commissioners receive a per diem of $200 for each meeting and $124 for travel expenses and milage reimbursement. For an assumed three meetings at the state capitol, this cost totals about $11,000.

Legal Services

The commission will contract with outside legal counsel to provide legal assistance in reviewing maps, complying with the measures criteria, and defending any legal challenges.

Employee Insurance and Supplemental Retirement Payments

The measure increases various centrally appropriated costs associated with state employees, including employee insurance, supplemental employee retirement payments, and other costs.

Judicial Department

The measure will minimally increase workload for the Colorado Supreme Court to review any modified maps outside of a redistricting year.

Effective Date

If approved by voters at the 2026 general election, this measure takes effect upon proclamation of the Governor, no later than 30 days after the official canvass of the vote is completed.

State and Local Government Contacts

Judicial

Legislative Council Staff

Secretary of State